

[3] The court orders Counsel Estavillo to submit a new proposed Order Granted Attorney's Motion to be Relieved as Counsel on form MC-0453, showing the next hearing date to be August 11, 2026 at 8:30 am Dept. 32, at 725 Court Street, Martinez, CA 94553. This new proposed order must be lodged with the court within 5 court days of this hearing.

The court intends to sign that order and order that it be effective upon proof of service of notice of entry of the order.

11. 9:00 AM CASE NUMBER: C25-03207

CASE NAME: ADRIANA ROBLES VS. DAVID ALEXIS

\*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: SHAUN J. BAUMAN, ESQ.

FILED BY: ROBLES, ADRIANA

\*TENTATIVE RULING:\*

The unopposed motion of **Shaun J. Bauman** to be relieved as counsel for **Plaintiff Adriana Robles** is granted.

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§ 284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination upon the consent of both client and attorney, or upon order of the court, upon the application of either client or attorney, after notice from one to the other.

**Plaintiff Adriana Robles'** counsel has complied with the provisions of this rule and statute providing notice to client and supporting his motion with a declaration articulating

the reasons for withdrawal. After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record.

This motion is **granted**.

The Court will execute the Proposed Order Granting Attorney **Shaun J. Bauman's** Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted with the modification that the next court date is October 14, 2026 for CMC in Dept. 32. The

withdrawal is effective upon **Shaun J. Bauman's** filing the proof of service of signed order on the client and all parties.

**12. 9:00 AM CASE NUMBER: C25-03681**  
**CASE NAME: ROSSMOOR RETAIL PARTNERS, LLC VS. DELITHA HENSON**  
**HEARING ON DEMURRER TO: ANSWER**  
**FILED BY: ROSSMOOR RETAIL PARTNERS, LLC**  
**\*TENTATIVE RULING:\***

VACATED BY FILING OF AMENDED ANSWER.

**13. 9:00 AM CASE NUMBER: C25-03717**  
**CASE NAME: KRISTIN OWEN VS. US BANK TRUST NATIONAL ASSOCIATION**  
**\*HEARING ON MOTION IN RE: NTC AND MTN FOR STRIKING PORTIONS OF COMPLAINT**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

Plaintiff filed a "Motion for Striking Portions of Complaint" (MTS) on March 23, 2026. She writes that she "denies generally and specifically, each and every allegation and cause of action set forth in the complaint. In addition, Plaintiff denies that defendant is entitled to relief sought in the complaint or any relief whatsoever, as against Plaintiff."

Plaintiff does not appear to be moving to strike anything in her Complaint. Plaintiff's MTS was filed two weeks after Defendant filed its Answer on March 9, 2026. It appears that Plaintiff repeats the allegations in the Answer and purports to respond to each of the affirmative defenses by asserting them as "affirmative defenses" of her own.

The motion makes no procedural sense and is unaccompanied by a memorandum of points and authorities. There is no logical or legal argument contained in the moving papers.

The MTS is **denied**.

**14. 9:00 AM CASE NUMBER: C26-00155**  
**CASE NAME: JANE DOE VS. DANTE WESTBROOK**  
**\*HEARING ON MOTION IN RE: QUASH SERVICE**  
**FILED BY: WESTBROOK, DANTE**  
**\*TENTATIVE RULING:\***

The hearing on this matter is continued until Friday, July 17, 2026, at 9:00 a.m.